

The Andhra Land Revenue Assessments (Standardization) Repeal Act, 1979

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State of Tamilnadu- Act

The Andhra Land Revenue Assessments (Standardization) Repeal Act, 1979

TAMILNADU

India

The Andhra Land Revenue Assessments (Standardization) Repeal Act, 1979

Act 65 of 1979

Published on 7 December 1979

Commenced on 7 December 1979

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The Andhra Land Revenue Assessments (Standardization) Repeal Act, 1979

Tamil Nadu Act

65 of 1979

Statement of Objects and Reasons. - The Andhra Land Revenue Assessments (Standardization) Act, 1956 (Andhra Act XXIX of 1956), as adopted by the Madras (Added Territories) Adaptation of Laws Order, 1961, is still in force in the added territories of Tiruttani taluk, Chengalpattu district and portion of North Arcot district. The Andhra Act provides for the standardization of land revenue assessment. As the Tamil Nadu Additional Assessment and Additional Water Cess Act, 1963 (Tamil Nadu Act 8 of 1963) applies to the whole of the State Of Tamil Nadu including the added territories, the levy of assessment Udder Tamil Nadu Act 8 of 1963, will be in addition to the standard rates of assessment levied under

Andhra Act XXIX of 1956. With a view to secure uniformity of laws applicable throughout the State, it is proposed to repeal Andhra Act XXIX of 1956.

2. Consequent on the repeal of Andhra Act XXIX of 1956, there will be no law left for the levy of land revenue in that area. With a view to protect the preexisting land revenue assessment and to ensure that such repeal does not affect the levy and collection of the "current rates of assessment" as defined in clause (i) of section 2 of the said Andhra Act, suitable saving clause has been proposed.

3. The standard rates of assessment were levied and collected up to the 30th June 1964 in certain villages in the added territories and thereafter the collection was discontinued. In certain other villages in the added territories, the levy and collection was continued up to the 30th June 1966. It is, however, proposed to give retrospective effect to the repeal of the Andhra Act from the 1st July 1964. As regards the collections made on and from the 1st July 1964 and up to the 30th June 1966 in certain villages, necessary administrative orders have already been issued by Government for adjusting them against the demands on account of land revenue.

4. The Bill seeks to achieve the above objects.

Received the assent of the Governor on the 7th December 1979, and published in Part IV-Section 2 of the Tamil Nadu Government Gazette Extraordinary on the 7th December 1979.

An Act to repeal the Andhra Land Revenue Assessments (Standardization) Act, 1956, in its application to the added territories

Be it enacted by the Legislature of the State of Tamil Nadu in the Nineteenth Year of the Republic of India as follows :

1.

Short title and commencement.

(1)

This Act may be called the Andhra Land Revenue Assessments (Standardization) Repeal Act, 1979.

(2)

It shall be deemed to have come into force on the 1st July 1964.

2.

Repeal of Andhra Act XXIX of 1956.

- The Andhra Land Revenue Assessments (Standardization) Act, 1956 (Andhra Act XXIX of 1956) (hereinafter referred to as the principal Act), in its application to the added territories, is hereby repealed.

Explanation. - For the purpose of this Act, "added territories" means the territories specified in the Second Schedule to the Andhra Pradesh and Madras (Alteration of Boundaries) Act, 1959 (Central Act 56 of 1959).

3.

Savings.

- The Government shall be entitled to levy the current rates of assessment as defined in clause (i) of section 2 of the principal Act on all lands on which standard rates of assessment were levied under the principal Act immediately before the date of the commencement of this Act; and accordingly,

(a)

the repeal of the principal Act by section 2 shall not affect the levy and collection of the current rates of assessment aforesaid; and

(b)

the State Government or any officer or authority subordinate to them, shall continue to exercise, all the powers which they had immediately before the commencement of the principal Act in respect of matters relating to fixation, reduction, enhancement, cancellation or revision of assessments fixed under the settlement or re-settlement notification in force in the added territories.

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